

Wills Short Form

As a general rule

- **Due execution requires:** 18y/o, signed by testator, and the end thereof, T must acknowledge his earlier signature in the presence of each witness, public the will (declare), 2 attesting witnesses, execution ceremony w/i 30 days of first witness sign.

Validity of a Will

- **Foreign Wills Act:** will is admissible to probate in NY if validly executed under the law of state where it was created, NY Law, or law of state testator was domiciled at will's execution or death.
- A bequest to a witness is void unless **Supernumerary "whichever is less"** rule.
- Holographic wills (no witness) and Nuncupative (oral) wills are void, except military or mariners.

Modification, Revocation

- Revocation: Subsequent testamentary instrument (implication) or physical act.
- **Presumption** of destruction by physical act if last seen in T's possession/control.
- Modification: Second will revoking the first or codicil (no partial revocation by physical act, no revival subject to Dependent Relative Revocation/Second Best Solution doctrine.
- Proof of lost will: Due execution and no revocation (2 credible witness or draft/copy proved complete by clear & convincing evidence).

Application of a Will

- **Debts:**
 - **Abatement:** If there are not enough assets to cover all gifts and claims under a will, the gift's "abate" so creditors can be paid.
 - Liens on specifically devised property are not exonerated unless the will specifically directs exoneration, donee takes subject to the note.
- **Bequests:**
 - If a will makes a specific gift of property and the property cannot be found/testator doesn't own it at death, gift fails without regard to T's probable intent (except general/demonstrative legacies, and except casualty insurance, executory K, specifically bequeathed property paid after death)
 - **Negative Bequest rule:** words of disinheritance are given full effect even in partial intestacy).
- **Distribution**
 - **New York Anti-Lapse** statute: If a will beneficiary dies during T's life, gift fails/lapses unless saved by an anti-lapse statute. In NY, the gift vests in deceased beneficiary's issue if predeceased beneficiary was T's issue/sibling and predeceased beneficiary leaves surviving issue.
 - **USDA:** If two persons die under circumstances such that there is insufficient evidence that they have otherwise than simultaneously, the property of each is distributed as though s/he survived.
 - **Incorporation by reference** (document exists when will drafted, will shows

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- intent to incorporate, extrinsic document clearly identified) does not exist in NY.
- **Non-testamentary Acts doctrine:** Acts after will is executed are given full effect when distributions are made.
- Adopted children/issue have full inheritance rights from the adopting family, but no inheritance rights from natural parents/members of natural family except (natural adoption).
- In New York, **no contest (in-terrorem) clauses** are given full effect even if there is probable cause to challenge the will (unlike CL) unless forgery, revoked by later will, derivative action, construction claim or jurisdiction.
- **Consideration Furnish test** (deceased spouse and third party): surviving spouse has the burden of proof re: amount of decedent's contributions to that asset acquisition or amount in joint account.
- New York rejects CL lifetime gift as advancement of intestate share/will, stating that there is **no advancement** unless proved by contemporaneous writing at time of gift signed by donor manifesting intent.
- **Ademption:** If a will makes a specific gift of property, and the property cannot be found/testator doesn't own it at death, the gift fails without regard to testator's probable intent (but not demonstrative/general legacies, or casualty insurance, executory contract, specifically bequeathed property by conservator after death).
- Exempt property set aside: "off the top" over and above the property passing to the spouse by will, intestate or elective share.
- **Will contests**
 - Capacity to understand nature of the act, nature & approximate value of his property, natural object of his bounty, and dispositions of the gifts he is making.
 - Insane Delusion
 - Undue influence: exertion of an influence, overpowering the mind/will of testator, the product being a gift that would not have happened but for that influence.
 - If a will makes a gift to one in a confidential relationship who was active in preparing the will, inference of undue influence.
 - Putnam scrutiny: automatic inquiry if will bequests to drafting attorney to determine voluntariness (written, statutory commission, legal fees, sign/acknowledge with two witnesses).

Intestacy:

DISMAL: Decree (divorce/annulment), invalid divorce, separation decree (not agreements, unless specific) against surviving spouse, marriage void as bigamous/incestuous, abandonment, lack of support (by survivor).

- Wife alone: whole estate
- Wife + Kids: Wife 50k + 1/2, or 50k and the children get equally
- Kids alone: Passes in equal shares

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- Children + issue of predeceased children: per capita at each generation

Will:

If testator is divorced/marriage is annulled, all gifts and fiduciary appointments in favor of the former spouse are revoked by operation of law except: guardian appointments.

- Afterborn children
 - 1+ children @ execution and no provision, afterborn gets nothing.
 - If gifts to other children, afterborn shares as class gift.
 - If T makes limited provision only to living children, afterborn takes intestate share.
 - Different amounts, added together and divided by total number, shared proportionally
 - No children, intestate's share.

Distributee/Elective Share:

DISMAL: Decree (divorce/annulment), invalid divorce, separation decree (not agreements, unless specific) against surviving spouse, marriage void as bigamous/incestuous, abandonment, lack of support (by survivor).

- *Must be spouse of decedent domiciled in NY at time of death, unless will expressly states NY property distributed under NY law. Within 6 mos after Letters issue by Surrogate, but no more than 2 years after decedent's death.
- Wife: \$50k or 1/3 of the estate + 6% interest 7 mos. After issuance of testamentary letters/letters of administration.
 - Subject to **elective share of trust**: (death pre-94): eliminates elective share (1) outright disposition of > \$50k + trust principal $\geq$ 1/3 elective share amount.
 - Math: Net probate estate + $\frac{1}{2}$ Testamentary substitute = Augmented Estate.
Augmented estate - (Will devise - $\frac{1}{2}$ T-sub) - Net elective share.
 - All distributees contribute pro rata.
- T-Subs: Totten trusts, survivorship estates, lifetime transfers with strings, employee pensions, gifts w/I 1 year of death, US Gov't bonds and pay on death arrangements, Presently exercisable powers of appointment, irrevocable transfers prior to 9/1/92 or prior to marriage.
- Non T-Subs: LOGPIT: Life insurance, $\frac{1}{2}$ qualified pension/profit sharing benefits, gifts w/I 1 year (within 12k exclusion), pre-marriage irrevocable gifts, irrevocable transfers made 1+ year prior to death, transfers within life estate before 9/1/92 and during marriage.